

The U.P. Private Professional Educational Institutions (Regulation of Admission and Fixation of Fee) (Appellate Authority Procedure) Rules, 2013

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State of Uttar Pradesh - Act

The U.P. Private Professional Educational Institutions (Regulation of Admission and Fixation of Fee) (Appellate Authority Procedure) Rules, 2013

UTTAR PRADESH

India

The U.P. Private Professional Educational Institutions (Regulation of Admission and Fixation of Fee) (Appellate Authority Procedure) Rules, 2013

Rule

THE-U-P-PRIVATE-PROFESSIONAL-EDUCATIONAL-INSTITUTIONS-REGULATION-OF-ADMISSION-AND-FIXATION-OF-FEE-APPELLATE-AUTHORITY-PROCEDURE-RULES-2013 of 2013

Published on 20 August 2013

Commenced on 20 August 2013

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The U.P. Private Professional Educational Institutions (Regulation of Admission and Fixation of Fee) (Appellate Authority Procedure) Rules, 2013

Published vide Notification No. 1212/Sixteen-1-2012-14(14)-2011, Dated 20 August, 2013, U.P. Gazette, Extraordinary,

Part 4, Section (ka), dated 20 August, 2013

IN pursuance of the provisions of clause (3) of Article 348 of the Constitution, the Governor pleased to order the publication of the following English translation of Notification No. 1212 Sixteen-1-2012-14(14)-2011, dated 20 August, 2013:

IN exercise of the powers under Section 13 read with Section 11 of the Uttar Pradesh Private Professional Educational Institutions (Regulation of Admission and Fixation of Fee) Act, 2006 (U.P. Act no. 24 of 2006), the Governor is pleased to make the following rules with a view to regulating the constitution of the Appellate Authority-

1.

Short title and Commencement.

(1)

These rules may be called the Uttar Pradesh Private Professional Educational Institutions (Regulation of Admission and Fixation of Fee) (Appellate Authority Procedure) Rules, 2013.

(2)

They shall come into force on the date of their publication in the Gazette.

2.

Definition.

(1)

In these rules, unless the context otherwise requires-

(a)

"Act" means the Uttar Pradesh Private Professional Educational Institutions (Regulation of Admission and Fixation of Fee) Act, 2006 (U.P. Act No. 24 of 2006);

(b)

"Agent" means a person duly authorized by a party to present an application, written reply, rejoinder or any other document on its behalf before the Appellate Authority;

(c)

"Appellate Authority" means the Appellate Authority contemplated under Section 11 of the Act;

(d)

"Applicant" or "Petitioner" means a person making an application of petition to the Appellate Authority;

(e)

"Committee" means the committee constituted under Section 4 of the Act for regulation of admission and fixation of fee;

(f)

"Chairman" means the Chairman of Appellate Authority;

(g)

"Form" means a Form given in Appendix;

(h)

"Member" means the member of the Appellate Authority;

(i)

"Registry" means the Registry of the Appellate Authority.

(2)

Words and expressions used and not defined in these rules but defined in the Act shall have the meanings assigned to them in the Act.

3.

Language of Appellate Authority.

- The language of the Appellate Authority shall be Hindi in Devnagri script.

4.

Procedure for filling Application.

(1)

Every reference under Section 11 of the Act shall be addressed to the Chairman of the Appellate Authority and shall be made through a petition presented in Form I by the petitioner in person or by an agent or by a duly authorized legal practitioner to the office of the Appellate Authority or be sent by registered post with acknowledgement due.

(2)

The petition under sub-rule (1) shall be presented in triplicate.

(3)

The petitioner may attach to and present with, his petition a receipt slip in Form II which shall be signed by such employee as may be authorized by the Chairman of the Appellate Authority hereinafter referred to as the authorized employee.

5.

Presentation and Scrutiny of petition.

(1)

The authorized employee shall endorse on every petition of date on which it presented or received under registered post and shall sign the endorsement.

(2)

If, on scrutiny, the petition is found to be in order, it shall be duly registered and given a serial number.

(3)

If the petition, on scrutiny, is found to be defective and the defect noticed is of formal in nature, the authorized employee with the prior approval of the Chairman may allow the party to rectify the same in his presence, and if the said defect is not of formal nature, the authorized employee with the prior approval of the Chairman may allow the petitioner such time to rectify the defect as may be approved by the Chairman.

(4)

If the petitioner fails to rectify the defect within the time allowed under sub-rule (5), the authorized employee shall not register the petition thereof.

6.

Fee.

- The fees payable in respect of proceeding before the Appellate Authority shall be as indicated in the Schedule and shall be paid in the manner provided in the Court Fees Act, 1870:

Provided that where the Appellate Authority is satisfied that a petitioner is unable to pay the prescribed fee on ground of indigence, it may exempt such a petitioner from the payment of fee.

7.

Contents of petition.

(1)

Every petition filed under Rule 4 shall set forth concisely under distinct heads the grounds for such petition. Such grounds shall be numbered consecutively. The petitioner shall specify the date when cause of action for the claim has arisen, Every petition, including any miscellaneous application shall be typed in double space on one side on thick paper of good quality.

(2)

It shall not be necessary to present a separate application to seek an interim order or direction if in original petition the same is prayed for.

(3)

A petitioner may, subsequent to the filing of the petition for hearing of reference apply for an interim order of direction. Such an application shall, as far as possible, be in Form III.

(4)

Where the petitioner seeks condonation of delay, he shall file a separate application supported by an affidavit.

(5)

The Appellate Authority may at any stage of the proceeding require the petitioner to submit any further or better particulars of his claim.

8.

Documents to accompany the Petition.

(1)

Every petition shall be accompanied by the following documents:

(i)

an attested true copy of the order against which the petition is filed;

(ii)

copy of the documents relied upon by the petitioner and referred to in the petition;

(iii)

copy of rules, contract or regulation relevant to the proceedings;

(iv)

a self addressed and sufficiently stamped envelope or post-card as may be specified by the Appellate Authority by direction from time to time so that intimation could be sent to the petitioner for further steps or date hearing;

(v)

An index of the documents.

(2)

The documents referred to in sub-rule (1) may be attested by a legal petitioner, Gazetted Officer or a notary and each document shall be marked serially as Annexure A-1, A-2 and A-3 and so on.

(3)

Where a petition is filed by an agent, documents authorizing him to act as such agent shall also be appended to the petition:

Provided that, where a petition is filed by a legal practitioner, it shall be accompanied by duly executed 'Vakalatnama'.

(4)

The Appellate Authority, may at any stage of the proceedings require the petitioner to file the original document copies where of has earlier been filed by him.

9.

Plural relief.

- Every petition shall be based upon a single cause of action and may seek one or more reliefs provided that they are consequential to one another.

10.

Service of notices and Processes issued by the Appellate Authority.

(1)

Notice to be issued by the Appellate Authority may be served in and any of the following modes-

(i)

Service by the party itself (dasti);

(ii)

by hand delivery through process server;

(iii)

by registered post 'with acknowledgment due';

Provided that if the Appellate Authority does not specify the mode of sendee, notice may be sent by registered post with acknowledgement due' and the provision of sub-rule (2) of Rule 19-A of order V of First Schedule to the Code of Civil Procedure, 1908 (Act no. 5 of 1908) shall apply to such mode of service.

(2)

Where notice issued by the Appellate Authority is served by the party himself by 'hand delivery' (dasti), he shall file with the Registry of the Appellate Authority, the acknowledgement together with an affidavit of service.

(3)

Notwithstanding anything contained in sub-rule (1), the Appellate Authority may, taking into account the number of respondents and places of residence or work and other circumstances, direct that notice of, the petition shall be served upon the respondents in any other manner, including any manner of substituted service, as it appears to the Appellate Authority just and convenient.

(4)

The Appellate Authority shall deliver one copy of petition and other papers to the presenting officer of the Committee and other Concerned Authority which passed the order against which the petition has been filed.

(5)

Every notice issued by the Appellate Authority shall unless otherwise ordered, be accompanied by a copy of the petition and copy of the impugned order.

(6)

Every petitioner shall furnish sufficiently stamped full size envelopes bearing the full address of each respondent for

service of notices by registered post.

(7)

The fees for service of notice in any other manner shall be paid in accordance with the general or special orders of the Chairman.

(8)

Notwithstanding anything contained in sub-rules (1) to (4), if the Appellate Authority is satisfied that it is not reasonable or practicable to serve notice of petition upon all the respondents, it may, for reasons to be recorded in writing direct that the petition shall be heard, notwithstanding that some of the respondents have not been served with notice of the petition:

Provided that no petition shall be heard unless-

(i)

notice of the petition has been served, on the parties;

(iii)

notice of the petition has been served on the authority which passed the order against which the petition has been filed; and

(iii)

The Appellate Authority is satisfied that the interests of the respondent on whom notice of the petition has not been served are adequately and sufficiently represented by the respondent on whom notice of the petition has been served.

11.

Filing of reply and other documents by the respondents.

(1)

Each respondent intending to contest the petition, shall file in triplicate the reply to the petition and document relied upon in paper-book form with the Registry within one month of the service of notice of the petition on him.

(2)

In the reply filed under sub-rule (1), the respondent shall specifically admit, deny or explain the facts stated, by the petitioner in his petition and may also state such additional facts as may be found necessary for the just decision of the case.

(3)

The documents referred in sub-rule (1) shall also be filed along with the reply the same shall be marked as R1, R2, R3 and so on.

(4)

The respondent shall also serve a copy of the reply along with documents as mentioned in sub-rule (1) on the petitioner of his legal practitioner, if any, and file proof of such service in the Registry.

(5)

The Appellate Authority may allow filling of the reply after the expiry of the prescribed period.

(6)

The Appellate Authority may at any stage of the proceedings require the respondent to submit further or better particular of his defence and may also to require him to file the original documents a copy whereof has been earlier filed by him.

12.

Date and place of hearing to be notified.

- The Appellate Authority shall notify to the parties including the Presenting Officer of the Committee the date and place of hearing of the petition in such manner as the Chairman, may by general or special order direct.

13.

Calendar of case.

(1)

Every petition shall be heard and decided, as far as possible within six months from the date of its registration.

(2)

The Appellate Authority shall have the power to decline an adjournment and also to limit the time for oral arguments.

14.

Action on petition for petitioner's default.

(1)

Where on the date fixed for hearing of the petition or any other date to which such hearing may be adjourned the petitioner does not appear when the petition is called for hearing, the Appellate Authority may, in its discretion either dismiss the petition for default or hear and decide it on merit.

(2)

Where a petition, has been dismissed for default and the petitioner files an application within thirty days from the date of dismissal and satisfies the Appellate Authority that there was sufficient cause for his non-appearance when the petitioner was called for hearing, the Appellate Authority shall make an order setting aside the order dismissing the petition and restore the same:

Provided that, where the case was disposed of on merits the decision shall not be re-opened except by way of review.

15.

Ex-parte hearing and disposal of petition.

(1)

Where on the date fixed for hearing the petition or on any other date to which such hearing has been adjourned, the petitioner appears and the respondent does not appear when the petition is called for hearing, the Appellate Authority may, in its discretion adjourn the hearing or hear and decide the petition ex-parte.

(2)

Where the petition has been heard ex-parte against a respondent, such respondent may apply to the Appellate Authority for an order to set it aside and if such respondent satisfies the Appellate Authority that the notice was not duly served, or that he was prevented by any sufficient cause from appearing when the petition was called for hearing the Appellate Authority may make an order setting aside the ex-parte hearing as against him upon such terms as it thinks fit, and shall appoint a day for proceeding with the petition:

Provided that where the ex-parte hearing of the petition is of such nature that it cannot be set aside as against one respondent only, it may be set aside as against all or any of the other respondents also:

Provided further that in cases covered by sub-rule (8) of Rule 11, the Appellate Authority shall not set aside ex-parte hearing of a petition merely on the ground that it was not served upon a respondent or respondents.

16.

Substitution of legal representative.

(1)

In the case of death of a party during the pendency of the proceedings before the Appellate Authority, the legal representatives of the deceased party may apply within ninety days of the date of such death for being brought on record as necessary parties.

(2)

Where no application is received from the legal representative within the period specified in sub-rule (1), the proceedings against the deceased party shall abate:

Provided that the Appellate Authority may on an application and for good and sufficient reasons set aside the order of abatement and substitute the legal representatives.

17.

Adjournment of hearing.

- The Appellate Authority may if sufficient cause is shown at any stage proceedings grant time to the parties or any of them and adjourn the hearing of the petition. The Appellate Authority may make such order as it thinks fit with respect to the costs occasioned by the adjournment.

18.

Order to be signed and date.

- Every order of Appellate Authority shall be in writing and shall be signed by the Chairman and the Member.

19.

Publication of order.

- Such of the orders of the Appellate Authority, as are or deemed fit for publication in any authoritative report or the press, may be released for such publication on such terms and conditions as the Chairman may specify by general or special order.

20.

Communication of orders to the parties.

(1)

Every interim order, granting or refusing or modifying interim relief and final order shall be communicated to the petitioner and to the concerned respondent or to their counsel, either by hand delivery or by post free of cost:

Provided further that unless ordered otherwise by the Appellate Authority, a copy of the final order need not be sent to any respondent who has not entered appearance:

Provided further that when the petitioner or the respondent is represented by counsel, under a single Vakalatnama, only one copy shall be supplied to such counsel as named therein.

(2)

If the petitioner or the respondent to any proceeding requires a copy' of any document or proceeding the same shall be supplied to him on such terms and conditions and on payment of such fees as provided in these rules.

21.

Inspection of the record.

(1)

The parties to any case or their counsel may be allowed to inspect the record of the case by making an application in writing to the Chairman.

(2)

Subject to such terms and conditions as may be prescribed by the Chairman by a general or special order a person who is not a party to the proceedings, may' also allowed to inspect the proceedings after obtaining the permission of the Chairman in writing.

22.

Orders and direction in certain case.

- The Appellate Authority may make such orders or give such directions as may be necessary or expedient to give effect to its orders or to prevent abuse of its process or to secure the ends of justice.

23.

Registration of legal practitioner's Clerk.

(1)

No clerk employed by a legal practitioner shall on the expiry of one month from the date of coming into force of these rules act as such in the Appellate Authority or be permitted to have access to the records and obtain copies of the orders of the Appellate Authority in which the legal practitioner ordinarily practices unless his name is entered in the Register of clerks maintained by the Appellate Authority'. Such clerk shall be known as "Registered Clerk".

(2)

A legal practitioner desirous of registering his clerk shall make an application to the Appellate Authority in Form IV. On such application being allowed by the Appellate Authority', his name shall be entered in the Register of Clerks.

(3)

After registration of the clerk, the Appellate Authority shall direct the issue of an identity card to him which shall be non-transferable and shall be produced by the holder upon request by an officer or other employees of the Appellate Authority authorized in this behalf. The identity card shall be issued under the signature of the Register.

(4)

A register of all the clerks registered under sub-rule (2) shall be maintained in the office of the Appellate Authority.

(5)

A legal practitioner shall have at a time not more than two registered clerks unless the Appellate Authority by general or special order otherwise permits.

(6)

Wherever a legal practitioner ceases to employ a registered clerk, he shall notify the fact at once to the Appellate Authority by means of a letter enclosing there with the identity card issued to his clerk by the registry', and on receipt of such letter the name of the said registered clerk shall be struck off from the register.

24.

Working hours of the Appellate Authority.

- Except on Sunday and other public holidays, the office of the Appellate Authority shall, subject to any order made by the Chairman remain open 10 a.m, to 5 p.m.

25.

Sitting hours of the Appellate Authority.

- The sitting hours of the Appellate Authority shall ordinarily be from 10:30. a.m. to 1.30. p.m. and from 2.30. p.m. to 4.30. p.m. subject to any general or special order made by the Chairman.

26.

Seal and emblem.

- The official seal and emblem of the Appellate Authority shall be such as the State Government may specify.

27.

Dress of the Member and Staff of the Appellate Authority.

- The dress for the Chairman and the member and members of the staff of the Appellate Authority shall be such as the Chairman may specify.

28.

Appellate Authority Dress of the parties.

- A legal practitioner or, as the case may be, a presenting officer shall appear before the Appellate Authority in his professional dress, if any and if there is no such dress

(i)

if a male, in closed collared coat and trousers or in lounge suit;

(ii)

if a female, in a saree or any other customary dress of a sober colour.

29.

Chairman and member shall decide appeal in bench sitting.

30.

Copy to be granted to person entitled.

- A copy of judicial record, pertaining to the Appellate Authority, may be granted in the manner prescribed by these rules to any person, legally entitled to receive it.

31.

Copies to parties/party entitled to copy of record or document.

- A party to a petition is entitled to obtain, at any stage of the proceedings, copy of the record or document filed before the Appellate Authority, on payment of fee of one rupee per page, irrespective of the number of words, or lines on that page.

32.

Grant of copy of document to a stranger.

- A stranger to the petition may be granted on payment of the fee as laid down in these rules a copy of (a) a petition, (b) reply, (c) affidavit, (d) document produced by the parties, (e) adjournment application or other application filed by parties, (f) judgement or order passed by the Appellate Authority, provided he shows to the satisfaction of the Appellate Authority that he has sufficient reason for obtaining such copy.

33.

Extra fee for urgent copy fee.

- On an application for 'urgent copy' i.e. copy to take precedence over other copying work, a uniform extra fee of rupee one per page shall be charged.

34.

Mode of payment of copying.

(1)

All applications for the grant of certified copies whether by parties or by stranger shall be accompanied with a non-refundable fee of rupees five.

35.

Time of delivery of copy.

- Urgent copy shall be delivered to the applicant as far as possible within three days and ordinary copy within ten days from, the date of submission of an application.

36.

Failure to claim copy.

- If the applicant does not claim the copy within the period mentioned in rule 35 within six months thereafter, the copy so

prepared may be destroyed and the copying fee paid by the applicant shall be forfeited to the State Government.

37.

Contents of application.

- Every application for supply of copy shall contain the following particulars, namely-

(a)

number of the petition or case;

(b)

names of the parties;

(c)

whether the case is pending or disposed of;

(d)

the name of document of which copy is required;

(e)

in the case of a copy of an order, whether for private or general use;

(f)

the name and full postal address of the applicant.

38.

Endorsement to be made on the copy before deliver.

- Every copy, before its delivery to the concerned applicant, shall be stamped indicating therein-

(a)

serial number of the 'application';

(b)

name of the applicant;

(c)

date of presentation of application for copy;

(d)

number of pages;

(e)

copying the charged urgent or ordinary;

(f)

date of preparation of copy;

(g)

date of delivery of the copy to the applicant;

39.

Copies Supplied shall be verified.

- All copies supplied by the Registry of the Appellate Authority shall be certified to be true copies by the Appellate Authority in that behalf and shall also bear the seal of the Appellate Authority. The Officer In-Charge of the Copying Branch or the officer so authorized shall also initial every alternation on the copy.

40.

Register of application.

- A register of applications for certified copies shall be maintained in the form as given in Form V.

41.

Return of document.

(1)

Where any case referred to the Appellate Authority has been finally dispose off Society or Trust or person on, committee may apply to the Appellate Authority for return of the document filed hereby.

(2)

Every such application shall be entered in the Register in Form XII and the signatures of the recipient shall be obtained in token thereof.

42.

Caveat.

- Any Institution or Society or Trust or person or committee for admission and fee regulation may file a caveat with the Appellate Authority in respect of any matter which such party considers likely to be raised before the Appellate Authority by reference under the Act and where such caveat is filed, the Appellate Authority shall before passing any interlocutory order on reference to it and when received give an opportunity of being heard to the party filing the caveat if such party has taken necessary steps for timely appearance in this behalf.

43.

Registers.

- The Appellate Authority shall, required to be maintained under rules 23 and 40 maintain the following registers, namely,-

(a)

Register of reference in Form VI;

(b)

Register of Disposal in Form VII;

(c)

Register of Returned document in Form VIII;

(d)

Register of Fees realized in Form IX;

(e)

Register of record consigned in Form X;

(f)

Any other register which the Chairman considers

By order, Neeraj Kumar Gupta,

Pramukh Sachiv.

Schedule

(See Rule 6)

1. Fees payable on petitions of reference under section 4 of the Act..... Rs. 100.00

2. Fees payable on application-

(a)

application for review,.....Rs. 50.00

(b)

application for stay of proceeding or stay of an order impugned.....Rs. 10.00.

(c)

application for setting aside an ex parte decision or an order for dismissal in default.....Rs. 10.00

(d)

application for inspection of document where inspection has once been permitted.....Rs. 10.00

(e)

application for adjournment or grant of time for any reply or other steps to be taken.....Rs. 5.00

(f)

Any other application.....Rs. 10.00

Form I

[See Rule 4(1)]

Petition under section 11 of the Uttar Pradesh private professional Education Institutions (Regulation of Admission and Fixation of Fee) Act, 2006.

Title of the case:

Index

SL. No.

Description of document relied upon in

Petition

Date

Annexure

Page

1
2
3
4
5
6

For use in Appellate Authority's office

Signature of the Applicant

Date of filing or Date of receipt by post Registration No.

Signature

of Authorized person.

Appellate authority

Under the Uttar Pradesh Private Professional Education Institutions (Regulation of Admission and Fixation of Fee) (Appellate Authority Procedure) Rules, 2013

Appeal no.....Of.....

A.B. (add description such as non of, resident of and place of employment of last employed.....)

Counsel.....

Versus

CD. (add description and the residential or official address on which the service of notices is to be effected on the respondent or respondents. The details of each respondent are to given in a chronological order).

Respondent

Details of application

Counsel.....

1. Particulars of the order against which the application is made: (Particulars of the order giving the details like the number, date and the authority which has passed the order, against which the application is made).

2. Jurisdiction of the Appellate Authority:

The applicant declares that the subject-matter of the order against which he wants redressal is within the jurisdiction of the Appellate Authority.

3. Limitation:

The applicant further declares that application is within the limitation period prescribed in Section 11 (1) of The Uttar Pradesh Private professional Educational Institutions (Regulation of Admission and Fixation of Fee) Act, 2006.

4. Facts of the Case:

(Give here a concise statement of facts in chronological order, each paragraph containing as nearly as possible, a separate issue or fact).

5. Grounds for relief with legal provisions and the date when the cause of action for the claim arose.

6. Details of the remedies exhausted:

(The applicant declares that he has availed of all the remedies available to him under the relevant service rules etc.)

(Give here chronologically the details of representations if any made and the outcome of such representations with reference to the number of Annexure to be given in support thereof)

7. Matters previously filed or pending with any other Court/Authority/Community:

The applicant further declares that he had not previously filed any application, writ petition or suit, regarding the matter in respect of which this application has been made, before any court or any other authority or the Appellate Authority nor any such application, writ petition -or suit is pending before any of them.

In case the applicants had previously filed any such application, or suit, the stage at which it is pending and if decided, the list of the decisions should be given with reference to the number of Annexure to be given in support thereof.

8. Reliefs sought.

In view' of the facts mentioned in Para 6 above the applicant prays for the following relief (s)-

Specify below the relief (s) sought explaining the ground for such relief (s) and the legal provisions, if any relied upon.

9. Interim order, if any prayed for:

Pending final decision on the application, the applicant seek the following interim relief

(Give here the nature of the interim relief prayed)

10. In the event of application being sent by registered post, it may be stated whether the applicant desires to have oral hearing at the admission stage and if so, he shall attach a self addressed postcard or Inland Letter, at which intimation regarding the date of hearing could be sent to him.

11. List of enclosures:

- 1.
- 2.
- 3.
- 4.

Verification

I.....(name of the applicant) S/o, D/o, W/o,.....aged.....R/o.....do hereby verify that the contents of paras.....to.....are true to my personal knowledge paras.....to.....are based on record and paras.....to.....suppressed any material fact.

Date:

Place

Signature of the Petitioner.

Form-II

[See Rule 4 (3)]

Receipt Slip

Receipt of the application filed in the Uttar Pradesh Private Professional Education Institutions (Regulation of Admission and Fixation of Fee) (Appellate Authority).....Shri/Km./ Smt.....working as.....in the office of the Appellate Authority residing at.....is hereby acknowledged.

For Authority personAppellate Authority

Appellate Authority

Under the Uttar Pradesh Private Professional Educational Institutions (Regulation Admission and Fixation of Fee) (Appellate Authority Procedure)

Form-III

[See Rule 7(3)]

Misc. Application No.....of.....

In Appeal No.....of.....2013

Transferred XXXX.....Applicant

(Applicant)

versus

YYY YYY.....Respondent

(Opposite Parties)

Brief facts leading to the application:

Relief/prayer:

Verification

I.....(name of the applicant) S/o, D/o, W/o.....aged.....R/o.....do hereby verify that the contents of paras.....to.....are true to my personal knowledge, paras.....to.....base on personal record and paras.....to.....believed to be true on legal advice and that have not suppressed any materiel fact.

Date:

Place:

Signature of the ApplicantSignature of the Advocate

Form IV

[See Rule 23 (2)]

Application for Registration of a Clerk

1. Name of legal practitioner on whose behalf the clerk is to be registered.

2. Particulars of the clerk to be registered.

(i)

Full name: (Capital)

(ii)

Father's name:

(iii)

Age and date of Birth:

(iv)

Place of Birth:

(v)

Nationality:

(vii)

Educational qualifications:

(viii)

Particulars of previous employment, if any:

I.....(Clerk above named) do hereby affirm that the particulars relating to me given above are true.

Signature of the Clerk

3. Whether the legal practitioner has a clerk already registered in his employment and whether the clerk sought to be.....registered is in lieu of or in addition to the clerk already registered.

4. Whether the clerk sought to be registered is already registered as clerk of any other legal practitioner and if so, the name of such practitioner.

I(legal practitioner) certify that the particulars given above are true to the best of my information and belief and that I am not aware of any fact which would render unsuitable the registration of the said.....(name) as a clerk.

Further, I enclose fees of Rs. 5.00 being the cost of Identity Card along with 2 passport size photographs of the applicant duly attested by me.

Signature of the Practitioner

Date:

To,

The Chairman

Appellate Authority,

Form V

Register of application for certified copies

[See Rule 40]

SL. No.

Date applicant

Amount of the applicant

Name of the applicant

Date of delivery of the copy

Signature of the person

1

2

3

4

5

6

Form VI

[See Rule 41(2)]

Register of the References

Sl. No.

Date of receiving the reference

Name and designation of the Claimant

Name of the O.P. or Committee for Regulation

Admission and Fixation of Fee or Claimant likely to be affected

1
2
3
4

Under what Section
Substance of relief claimed
Date of decision
Nature of decision
Remark

5
6
7
8
9

Form VII
[See Rule 43]
Register of Disposals

SL. No:
Case No.
Name of parties
Date of decision
Remark

1
2
3
4
5

Form VIII
[See Rule 43]
Register of Returned Documents

Sl. No.
Name of Applicant
Date of Application
Case in which document were filed

1
2
3
4

Description of document returned
Date of return
Signature of recipient
Remarks

5
6
7
8

Form IX
[See Rule 43]
Register of Fees realized

Sl. No.
Particulars of the case in which fee is paid

Name of persons paying fee

Date of payment of fee

Amount of fee paid

Remark

1

2

3

4

5

6

Form X

[See Rule 43]

Register of Records Consigned

Sl. No.

Case No

Name of parties

Date of Decision

Date of Consignment

Signature of employee receiving record

Remarks

1

2

3

4

5

6

7

Related AI tags, queries and research notes

Translation